

Pursuant to your request, attached please find a clean copy of the most recent draft of the LV Cogen Turbine Agreement (second document below), as well as a blackline (first document below) showing changes to the draft circulated on April 24. This version contains Lisa and Roseann's comments (but for changes to Purchase Amount, Maximum Liability Amount, etc.) as well as your comment to allocate the payments among the 4 Units equally. I have not received confirmation as to whether the April 21 payment was ever made. I have therefore left it in bold. If it has, we can amend the table and reduce the Purchase Amount accordingly. In addition, I have assumed that if there is a Change Order applicable to less than all 4 Units, that the Change Order would specify how future payments are to be allocated. To complete the agreement, we will need to insert the date of execution and Exhibit H-2.

I have not distributed this to anyone else. I would be happy to do so if you desire.

<<Compariosn of GE Turbine Agreement, Versions 5 to 6.DOC>> <<LV Cogen Gas Turbine Agreement - Version 6.DOC>>

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